

25STCV22148 25STCV22148

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Case Number: 25STCV22148 Hearing Date: August 5, 2026 Dept: 514

Khachikyan

v. Progressive Casualty Insurance Company

25STCV22148

Defendant's Demurrer to Second Amended Complaint

Defendant's Motion to Strike

Tentative Ruling

The

demurrer is sustained with leave to amend.

The

motion to strike is denied as moot.

Background

On

July 28, 2025, Gagik Kachikyan ("Plaintiff") filed the complaint in this action against Progressive Casualty Insurance Company ("Progressive") and Does 1 through 50.

On

September 23, 2025, Plaintiff filed a First Amended Complaint (the "FAC") against Blue Hill Specialty Insurance Company ("Blue Hill" or "Defendant") and Does 1 through 50.

On

November 17, 2025, the Court, at the request of Plaintiff, dismissed Progressive.

On February 23, 2026, the Court sustained Defendant's demurrer to the FAC.

On March 30, 2026, Plaintiff filed a Second Amended Complaint (the "SAC") against Blue Hill, Uber Technologies, Inc., and Does 1 through 50. In the SAC, Plaintiff asserts causes of action for (1) breach of contract, (2) breach of the covenant of good faith and fair dealing, (3) bad faith denial of insurance claim, (4) violation of California Business and Professions Code section 17200 (Unfair Business Practices), and (5) declaratory relief. Plaintiff alleges (among other things) that Defendant has failed to compensate him fully for injuries arising from a vehicle accident on August 31, 2023. (SAC, ¶¶ 4, 16-22.)

On May 18, 2026, Defendant filed this demurrer and motion to strike. Plaintiff filed oppositions on June 15, and Defendant filed replies on July 1.

The hearing on the demurrer and motion to strike was initially scheduled for July 9 and was continued to August 5.

Trial
has not been set.

Legal
Standard

Demurrer

Code
of Civil Procedure section 430.10 provides:

"The

party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

...

(e) The pleading does not state facts sufficient to constitute a cause of action.

(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible. ..."

A general demurrer under Code of Civil Procedure section 430.10, subdivision (e), tests whether the complaint states a cause of action. (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388; *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial [2026], ¶ 7:40.)

"We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. We also consider matters which may be judicially noticed." (*Centinela Freeman Emergency Medical Associates v. Health Net of California* (2016) 1 Cal.5th 994, 1010; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; accord *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924; *Marina Pacific Hotel and Suites v. Fireman's Fund Insurance Company* (2022) 81 Cal.App.5th 96, 104.) All reasonable inferences must be drawn in favor of the pleading. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Marina Pacific Hotel and Suites*, supra, 81 Cal.App.5th at p. 104.) Even "improbable" facts alleged in the pleading must be accepted as true. (*Marina Pacific Hotel and Suites*, supra, 81 Cal.App.5th at pp. 104-105.)

Courts must "liberally construe the pleading" and "give the complaint a reasonable interpretation, reading it as a whole and its parts in context." (*Id.* at p. 105.)

A

complaint must contain a “statement of facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd.

(a)(1); see also *C.A. v. William S. Hart High School Dist.* (2012)

53 Cal.4th 861, 872 [“the complaint need only allege facts sufficient to state a cause of action”].) Ordinarily, a complaint “is sufficient if it

alleges ultimate rather than evidentiary facts.” (*Doe v. City of Los*

Angeles (2007) 42 Cal.4th 531, 550.) Ultimate facts are those

upon which “the right to recover depends” and are “essential” to the cause of action. (*Estes v. Eaton Corp.* (2020) 51 Cal.App.5th 636, 643

fn. 2; see also 1 Weil & Brown, *supra*, ¶ 6:124.)

A

plaintiff is required to plead only “the essential facts of [its] case” that are sufficient “to acquaint a defendant with the nature, source and extent of [the] cause of action.” (*Doe, supra*, 42 Cal.4th at p.

550.) Mere boilerplate or pleading of legal conclusions is not

sufficient. (*Id.* at p. 551 fn. 5.) But a plaintiff need

not allege “each evidentiary fact that might eventually form part of plaintiff’s proof” at trial. (*C.A., supra*, 53 Cal.4th at

p. 872.)

A

demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), is “disfavored” and will be sustained “only if the

pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors* (2019)

38 Cal.App.5th 677, 695; accord *Mahan v. Charles W. Chan Ins. Agency,*

Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3.) A complaint

need not be “a model of clarity” and must only contain sufficient allegations to put the defendants on notice of the claims against them. (*A.J.*

Fistes Corp., supra, 38 Cal.App.5th at p. 695.) As

the Court of Appeal has observed, “where a complaint is in some respects uncertain, ... ambiguities can be clarified under modern discovery

procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14

Cal.App.4th 612, 616; see also 1 Weil & Brown, *supra*, ¶¶

7:85-7:86.)

A

demurrer can be sustained only when it disposes of an entire cause of action. (*Poizner*

v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong
v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028,
1046.)

Leave

to amend should be granted when "there is a reasonable possibility that the
defect can be cured by amendment." (Centinela Freeman, *supra*, 1
Cal.5th at p. 1010; Blank, *supra*, 39 Cal.3d at p. 318; Shaeffer
v. Califia Farms (2020) 44 Cal.App.5th 1125, 1145.)

Motion

to Strike

Under

Code of Civil Procedure section 435, "Any party, within the time allowed to
respond to a pleading may serve and file a notice of motion to strike the whole
or any part thereof." (Code Civ. Proc., § 435, subd. (b)(1).)

Code

of Civil Procedure section 436 provides:

"The

court may, upon a motion made pursuant to Section 435, or at any time in its
discretion, and upon terms it deems proper:

(a)

Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b)

Strike out all or any part of any pleading not drawn or filed in conformity
with the laws of this state, a court rule, or an order of the court."

(Code

Civ. Proc., § 436.) In ruling on a motion to strike, the court must assume the
truth of the properly pleaded facts in the complaint or other pleading. (Turman
v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53,
63.)

Meet and Confer Requirement

Before

filing a demurrer or motion to strike, the parties must “meet and confer in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a) & § 435.5, subd. (a).) This requirement has been satisfied. (Gore Decl., ¶¶ 3-5.)

Discussion

Demurrer

Defendant

demurs to each of the five causes of action in the SAC. The Court will address each cause of action in turn.

First

Cause of Action (Breach of Contract)

The

elements of a cause of action for breach are contract are: “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821; see also, e.g., Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.)

Here,

Plaintiff does not attach a copy of the written contract to the SAC. And although the Plaintiff does allege some terms of the contract in the SAC, Plaintiff does not allege all of the material terms.

The

Court previously sustained Defendant’s demurrer to the FAC on this same ground. The Court notes, however, that Plaintiff states in the opposition that Plaintiff recently (after the SAC was filed) obtained a copy of the insurance policy at issue. (See Opp., at 2:4-7.)

The

demurrer to the First Cause of Action is sustained. As it appears that Plaintiff can now cure this defect, the demurrer is sustained with leave to amend.

Second

and Third Causes of Action (Breach of the Implied Covenant of Good Faith and Fair Dealing and Bad Faith Denial of Insurance Claim)

The

elements of a cause of action for breach of the implied covenant of good faith and fair dealing are: (1) that there was or is a contract between the parties; (2) that plaintiff performed its contractual obligations or was excused from performing them; (3) that the conditions requiring defendant's performance have occurred; (4) that the defendant unfairly interfered with the plaintiff's right to receive the benefits of the contract; and (5) that the plaintiff was harmed by the defendant's conduct. (See *Guz v. Bechtel National* (2000) 24 Cal.4th 317, 349-350; *Carma Developers (Cal), Inc. v. Marathon Development California* (1992) 2 Cal.4th 342, 371-372; see also CACI No. 325.) Breach of an express term in the contract is not required. (*Moore v. Wells Fargo Bank* (2019) 39 Cal.App.5th 280, 291-292; *Thrifty Payless v. The Americana at Brand* (2013) 218 Cal.App.4th 1230, 1244.)

With

respect to the bad faith denial cause of action, a plaintiff must plead the following elements: "(1) Benefits due under the policy must have been withheld, and (2) the reason for withholding benefits must have been unreasonable or without proper cause." (*Love v. Fire Insurance Exchange* (1990) 221 Cal.App.3d 1136, 1151.)

Here,

Plaintiff has not sufficiently alleged a contract either between the parties or under which Defendant Blue Hill had obligations to pay Plaintiff. Absent proper allegations of a contract in the SAC, these two causes of action fail to state facts sufficient to constitute a cause of action.

The

demurrer to the Second and Third Causes of Action is sustained with leave to amend.

Fourth

Cause of Action (Violation of California Business and Professions Code Section 17200)

To

state a cause of action for a violation of Business and Professions Code sections 17200-17210 (the "Unfair Competition Law" or "UCL"), a plaintiff must allege that a defendant engaged in an "unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising," or certain other specific acts. (Bus. & Prof. Code, § 17200.) The UCL "uses the terms 'unlawful, unfair or fraudulent' in the disjunctive." (Gutierrez v. Carmax Auto Superstores California (2018) 19 Cal.App.5th 1234, 1265.) But cause of action under the UCL "is not an all-purpose substitute for a tort or contract action." (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.)

As

set forth above, however, Plaintiff has not included in the SAC a proper allegation of a contract (an insurance policy) either between the parties or under which Defendant Blue Hill had obligations to pay Plaintiff. Absent such an allegation, Plaintiff has not alleged any unlawful, unfair, or fraudulent business act or practice by Defendant.

The

demurrer to the Fourth Cause of Action is sustained with leave to amend.

Fifth

Cause of Action (Declaratory Relief)

To

state a cause of action for declaratory relief, a plaintiff must allege "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, cleaned up.)

Again,

however, Plaintiff has not properly alleged in the SAC the existence of a contract under which Defendant owed obligations to Plaintiff. Absent

such an allegation, Plaintiff has not alleged any actual controversy between the parties.

The
demurrer to the Fifth Cause of Action is sustained with leave to amend.

Motion
to Strike

As
the demurrer is sustained as to all causes of action in the SAC, the motion to strike is moot.

Conclusion

The
Court SUSTAINS, with leave to amend, the demurrer filed by Defendant Blue Hill Specialty Insurance Company.

The
Court DENIES as moot the motion to strike.

The
Court GRANTS Plaintiff leave to file an amended complaint by no later than August 26, 2026.

Moving
party is ordered to give notice.